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Chapter 3 - Terms and Conditions of J Exchange Visitor Status

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A. Eligibility for Admission

U.S. Customs and Border Protection may admit the exchange visitor and any accompanying dependent family members into the United States in J-1 and J-2 classifications^[1] if each applicant:

- Presents a valid passport;
- Valid J-1 or J-2 visa; and
- Certificate of Eligibility for Exchange Visitor (J-1) Status ([Form DS-2019](#)), issued in the exchange visitor's (or accompanying dependent family member's) name by a program approved by the U.S. Department of State (DOS) for participation by J-1 exchange visitors.^[2]

B. Admission and Grace Periods

DOS may issue J-1 and J-2 visas to qualified applicants at any time that the [Form DS-2019](#) is valid. However, the exchange visitor may not enter the United States more than 30 days before the program start date on the Form DS-2019 and may only remain in the United States for 30 days after completing the program for the purpose of travel.^[3]

C. Length of Programs and Duration of Status

J-1 exchange visitors are initially admitted for duration of status. Duration of status is defined as completion of the J-1 program plus 30 days.^[4] J-1 exchange visitors and their dependent family members are admitted for duration of status, but a Responsible Officer (RO) has the discretion to extend a participant's program to its maximum regulatory duration (the limit imposed by the regulations specific to a program category or to a program sponsor's designation).

The total length of time that a J-1 exchange visitor is permitted to stay in the United States depends on the program. The durational limits for each of the J-1 programs are set forth below.

Period J-1 Exchange Visitor is Permitted to Stay in United States

Category	Length of Stay ^[5]
Secondary School Students	Minimum 1 semester, maximum not to exceed 1 academic year.
College or University Students	Time needed to complete the academic program and practical training, not to exceed the duration of program or 18 months (36 months for postdoctoral students).
Short-Term Scholars	Time necessary to complete the program, not to exceed 6 months.
Trainees and Interns	18 months for a training program and 12 months for an intern program (limited exception for training programs in the field of agriculture, which may be designated for a total duration of 18 months).
Teachers	Time necessary to complete the program but may not exceed 3 years. Exception: Sponsors may request from DOS an extension of 1 or 2 years, but not by a semester or by other fractions of academic years.
Professors and Research Scholars	Time necessary to complete the program but may not exceed 5 years. Extension of the 5-year limitation is possible when the J-1 visa holder is engaged with a G-7 program sponsor.

Category	Length of Stay ^[5]
Specialists	Time necessary to complete the program, but not to exceed 1 year.
Physicians	Time necessary to complete the program, but may not exceed 7 years, unless the country the J-1 exchange visitor will return to requires a person with additional qualifications.
International Visitors	Time necessary to complete the program, but not to exceed 1 year.
Government Visitors	Time necessary to complete the program, but not to exceed 18 months.
Camp Counselors	No more than 4 months.
Au Pairs	12 months, but may be extended for an additional 6, 9, or 12 months.
Summer Work Travel Participants	4-month period during post-secondary school summer vacation.

D. Reporting Requirements

A J-1 exchange visitor must inform USCIS and exchange visitor program RO of any legal name changes or change of address within 10 days of the change in a manner prescribed by the program sponsor.^[6]

A J-1 exchange visitor enrolled in a Student and Exchange Visitor Information System (SEVIS) program satisfies the requirement of notifying USCIS by providing a notice of a change of address within 10 days to the RO, who in turn is required to enter the information in SEVIS within 21 days of notification by the exchange visitor.^[7]

J-1 foreign medical graduates granted a waiver of the 2-year foreign residence requirement under the Conrad 30 program^[8] must notify USCIS of any material change in the terms and conditions of the H-1B employment

during the 3-year period following waiver approval.^[9]

E. Employment Authorization

Several J-1 exchange visitor programs involve a work component. Exchange visitors participating in those programs are authorized to work incident to status.^[10]

F. Foreign Residence Requirement

Certain J-1 exchange visitors are subject to a 2-year foreign residence requirement.^[11] After leaving the United States, J-1 exchange visitors subject to the requirement must reside and be physically present in their country of nationality or last legal residence abroad for an aggregate of at least 2 years before they are eligible to apply for an immigrant visa, adjustment of status, or a nonimmigrant H, L, or K visa.^[12] Such country is the country of nationality or legal permanent residence listed on the Certificate of Eligibility for Exchange Visitor Status (Form DS-2019), and is referred to herein as the “Home Country.”

These exchange visitors are further prohibited from changing status from J nonimmigrant status to another nonimmigrant status, other than A, G, T, or U, or H-1B for physicians receiving waivers on the basis of a 3-year waiver position.^[13]

Exchange visitors participating in the following programs are subject to the foreign residence requirement: ^[14]

- Programs facilitated by the DOS designated sponsor, Educational Commission for Foreign Medical Graduates (ECFMG), for medical trainees. (ECFMG sponsored medical researchers are generally not subject to the requirement as medical trainees, but may be subject to the requirement on another basis);
- Programs in which the exchange visitor has received any type of government funding or support from the exchange visitor’s home country or country of last legal permanent residence, the U.S. Government, or an international organization, as indicated on the [Form DS-2019](#). (Government-sponsored programs beginning with G in the program number on Form DS-2019 are usually government-funded where the exchange visitor received financial support from the sponsor);
- Programs in which the exchange visitor’s field of endeavor appears on the DOS Exchange Visitor Skills List (list of fields of specialized knowledge or skills in which the services of exchange visitor participants are critically needed) for the exchange visitor’s home country or country of last legal permanent residence; ^[15] and
- Programs whose purpose is graduate medical training, typically a residency or fellowship.

Determining if the Foreign Residence Requirement Has Been Met

USCIS determines whether the exchange visitor has met the 2-year foreign residence requirement within the context of a subsequent application or petition. USCIS applies the preponderance of the evidence standard

when it makes this determination.

Benefit requestors may submit any relevant evidence showing their physical presence in the Home Country. For example, benefit requestors may submit a chart of days spent in the Home Country. Benefit requestors may also submit supporting evidence such as passport stamps, travel receipts, employment records, school transcripts, leases, or affidavits.

Any day where a fraction of a day is spent in the Home Country counts toward satisfaction of the requirement. For example, a travel day, where a fraction of the day is spent in the country of last permanent residence, counts as a day towards satisfying the requirement.

In certain cases, conditions in the applicant's Home Country, such as war or civil unrest, may make compliance with the 2-year residence requirement effectively impossible. Additionally, some countries have periodically imposed travel bans that have made traveling to the Home Country effectively impossible. In other cases, the applicant's Home Country is now part of another country due to shifting borders or other political changes. USCIS considers these circumstances, on a case-by-case basis, in consultation with the Department of State.

Footnotes

[^1] See [INA 101\(a\)\(15\)\(J\)](#).

[^2] The [Form DS-2019](#) is issued by an exchange program sponsor to an exchange visitor at the time of application for admission or change to J-1 nonimmigrant classification. An official who is authorized to issue Form DS-2019 is known as a Responsible Officer (RO) or Alternate Responsible Officer (ARO). Information about exchange visitors and any dependent family members is captured in the Student and Exchange Visitor Information System (SEVIS).

[^3] See [8 CFR 214.2\(j\)\(1\)\(ii\)](#). Employment is not authorized during this 30-day period, also known as a grace period. Employment is also not authorized during the 30-day period before the report date of the program listed on the [Form DS-2019](#).

[^4] See [8 CFR 214.2\(j\)\(1\)\(ii\)](#).

[^5] See [9 FAM 402.5](#), Students and Exchange Visitors – F, M, and J Visas. An RO or ARO seeking to extend the participation of an exchange visitor beyond the maximum duration of participation for the category in which the exchange visitor is participating must receive prior approval from DOS for an extension of program. The RO or ARO must submit a request in SEVIS and provide the required written documentation in support of the request to the DOS Office of Exchange Designation, Bureau of Educational and Cultural Affairs. If approved, the exchange visitor presents a [Form DS-2019](#) with an extended end date. Such a form can only be produced from SEVIS with DOS approval.

[^6] See [8 CFR 214.2\(j\)\(1\)\(viii\)](#).

[^ 7] See [8 CFR 265.1](#).

[^ 8] For more information on the Conrad 30 programs, see Chapter 4, Waiver of the Foreign Residence Requirement, Section F, Foreign Medical Graduates – Federal, State, and Conrad 30 Programs [[2 USCIS-PM D.4\(F\)](#)].

[^ 9] See [8 CFR 212.7\(c\)\(9\)\(vi\)](#).

[^ 10] See [8 CFR 274a.12\(b\)\(11\)](#). For information about employment authorization for J-2s, see Chapter 6, Family Members of J-1 Exchange Visitor [[2 USCIS-PM D.6](#)]. For information about applications for adjustment of status to permanent residence and associated requests for employment authorization filed by J-1 foreign medical graduates with an approved Immigrant Petition for Alien Workers ([Form I-140](#)) with a national interest waiver pursuant to [8 CFR 245.18\(d\)\(2\)](#), see the [Green Card Through a Physician National Interest Waiver \(NIW\)](#) website.

[^ 11] See [INA 212\(e\)](#).

[^ 12] See [INA 212\(e\)](#), [INA 214\(l\)](#), and [INA 248](#). See *Friedberger v. Schultz*, 616 F. Supp. 1315 (D.C. Pa 1985). An exchange visitor could be subject to the 2-year foreign residence requirement even if the J visa was obtained by fraud. See *Espejo v. INS*, 311 F.3d 976 (9th Cir. 2002), and [Matter of Park \(PDF\)](#), 15 I&N Dec. 436 (BIA 1975).

[^ 13] See [INA 212\(e\)](#), [INA 214\(l\)](#), and [INA 248](#).

[^ 14] See [INA 212\(e\)](#).

[^ 15] For the Exchange Visitor Skills List, see [74 FR 20108 \(PDF\)](#) (Apr. 30, 2009). A determination is made on the basis of the most current skills list at the time of admission or acquisition of J-1 status or when beginning a new program or changing program objective. Advancing to a higher level of study in the field of study is not considered a change of program objective.

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